



Universität St.Gallen

Introduction to Constitutional Law and Public International Law

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From insight to impact.

Agenda

- Fundamental Rights
 - General Concept: Overview
 - Legal Sources, Content, Beneficiaries, Addressees
 - Restrictions of Fundamental Rights

Case – Identification Measures

The public prosecutor's office of the canton of Basel-Stadt is conducting a criminal investigation against your friend A. He is accused of having surrounded the UBS building at St. Alban-Anlage in Basel together with other persons on the occasion of the climate action days. A. had written slogans around the property with pieces of coal, taped surveillance cameras and partially blocked the entrances with wooden barricades. A. was cooperative, however he had remained on the spot despite being ordered to leave and had continued to organize a sit-in blockade, which is why he was carried away by the police and temporarily detained. In this context, the police issued an order for identification measures based on Art. 255 Swiss Criminal Procedure Code (a federal statute), in particular a buccal swab (non-invasive sample of DNA from the cells on the inside of the cheek) for a DNA profile.

Your friend A. asks you if a fundamental right is affected by the identification measure and if the restriction is lawful?

Fundamental Rights

Fundamental rights are the constitutionally and internationally guaranteed legal entitlements of individuals in respect to their relationship with the state, which protect essential freedoms of every person.

Case – Identification Measures

Art. 255 Swiss Criminal Procedure Code

¹ For the purpose of solving a felony or misdemeanor, a sample may be taken and a DNA profile may be obtained from:

- a. the accused person;
- b. other persons, in particular victims or persons authorized to attend crime scenes, insofar as it is necessary to distinguish biological material originating from them from that of the accused person; (...)

² The police may order:

- a. the non-invasive taking of samples from persons;
- b. the creation of a DNA profile of biological material relevant to the offence.

1. Step: Is a Fundamental Right Affected?

Is the fundamental right guaranteed on national or international level?



Is the scope of application of the fundamental right affected?



Is the victim a beneficiary of the fundamental right?



Is the claim filed against an addressee of the fundamental right?



Conclusion: A fundamental right is affected.

Fundamental Rights – Legal Sources

- Swiss Constitution;
- Cantonal constitutions;
- European Convention on Human Rights (ECHR);
- U.N. Covenant on Economic, Social and Cultural Rights (ICESCR);
- U.N. Covenant on Civil and Political Rights (ICCPR);
- and various other international treaties.

Fundamental Rights – Legal Sources

In the „Identification Measures“-Case, which fundamental rights may be affected and in which legal sources are they guaranteed?

Fundamental Rights – Content and Categories

In view of their content and function, fundamental rights may be categorized in the following groups:



Civil
Liberties

Equality
Before the
Law

Social
Rights

Procedural
Rights

Political
Rights

Fundamental Rights – Content and Categories

In the „Identification Measures“-Case, is the scope of application of a fundamental right affected?

Fundamental Rights – Content and Categories

- The right to personal liberty encompasses in particular the right to physical and mental integrity and to freedom of movement.
- The right to physical integrity is affected by any interference with the body of an individual even if it does not cause any pain or damage.
- The right to mental integrity protects the psychological well-being of the individual.
- The freedom of movement protects against the deprivation of liberty without legal justification, e.g. the detention of a person against his or her will.

Fundamental Rights – Content and Categories

- The protection against the abuse of personal data must be interpreted broadly as a general fundamental right to informational self-determination.
- The right to informational self-determination protects an individual against the unlimited collection, processing, storage and dissemination of personal data.
- The right to informational self-determination in particular covers the collection and storage of biometric and genetic data by the authorities.

Fundamental Rights – Beneficiaries

In general: all natural persons are beneficiaries of fundamental rights.

Specific questions:

- Foreign nationals (Art. 24, Art. 25 para. 1, Art. 27, Art. 34 Cst)
- People with a special relationship to the state („*Sonderstatusverhältnis*“)
- Legal persons under private law (i.e. companies limited by shares or limited liability companies). These legal persons can invoke fundamental rights which are not exclusively targeted to the protection of an aspect of human existence.
- Legal persons constituted under public law can invoke a fundamental right only under exceptional circumstances namely when they act under private law and are affected by state activities in the same way as an individual.

Fundamental Rights – Beneficiaries

In the „Identification Measures“-Case, is the victim a beneficiary of the fundamental right?

Fundamental Rights – Addressees

In general: fundamental rights can be asserted only with regards to the state or entities fulfilling state functions but not with regards to private persons.

Specific questions:

- Art. 8 para. 3 Cst states that men and women have the right to equal pay for work of equal value.
 - Private persons must respect this fundamental right in their private relations.
 - *Direct-third-party applicability* (“*direkte Drittwirkung*”)
- The authorities must ensure that fundamental rights, where appropriate, apply to relationships between private persons (Art. 35 para. 3 Cst).
 - *Indirect-third-party applicability* (“*indirekte Drittwirkung*”)

Fundamental Rights – Addressees

In the „Identification Measures“-Case, is the claim filed against an addressee of the fundamental right?

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is there a legal basis for the restriction (Art. 36 para. 1 Cst)?



Is there a public interest justifying the restriction or the need to protect fundamental rights of others (Art. 36 para. 2 Cst)?



Is the restriction proportionate (Art. 36 para. 3 Cst)?



Is the essence of the fundamental right respected (Art. 36 para. 4 Cst)?



Conclusion: The restriction of the fundamental right is lawful.

Legal Basis (Art. 36 para. 1 Cst)

To restrict a fundamental right, a legal basis is required. The requirement entails two elements:

1. The restriction must be determined by a *legal rule* (Art. 36 para. 1 sentence 1 Cst):

Every restriction must be described in a general (indeterminate number of individuals) and abstract (indeterminate number of cases) legal provision.

→ Equality before the law

In addition, the legal provision has to be formulated with sufficient precision to permit individuals to act in conformity with it, and to enable individuals to foresee the consequences of their behavior.

→ Legal certainty

Legal Basis (Art. 36 para. 1 Cst)

2. The legal rule must conform with a certain *legal form* depending on the significance of the restriction (Art. 36 para. 1 sentence 2 Cst):

Significant restrictions must have their basis in a legal statute enacted by the legislature on either the federal or the cantonal level, and are subject to a referendum. Restrictions of minor significance may be provided for in an ordinance adopted by executive authorities.

→ The democratic legitimacy needs to be higher, the more significant a restriction of a fundamental right is.

Legal Basis – General Police Clause (Art. 36 para. 1 sentence 3 Cst)

1. There are very important public interests or interests of individuals endangered.
2. There must be a serious danger for these interests or these interests have already been disrupted.
3. The situation calls for immediate action.
4. There are no adequate legal measures provided for.

→ In such cases, the general police clause may temporarily replace a legal basis.

Fundamental Rights – Restriction

In the „Identification Measures“-Case, is there a legal basis for the restriction (Art. 36 para. 1 Cst)?

Public Interest or Protection of Others (Art. 36 para. 2 Cst)

- Restrictions of fundamental rights must be justified by public interests or by the need to protect the fundamental rights of others.
- In general, public interests embrace all measures available to the state for the promotion of the common good.
- Police interests are an important category of the public interests (protection of public order, safety, peace, health, morals, and good faith in business dealings).

Fundamental Rights – Restriction

In the „Identification Measures“-Case, is there a public interest justifying the restriction or the need to protect fundamental rights of others (Art. 36 para. 2 Cst)?

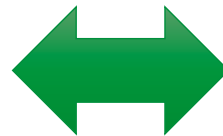
Proportionality (Art. 36 para. 3 Cst)

To evaluate the proportionality of a restriction, the following three conditions must each be fulfilled:

1. The regulatory measure must be *adequate* to achieve a legitimate public purpose.
2. The regulation must be *necessary*. Where less restrictive measures would achieve the same goal, the restriction will be deemed disproportionate.
3. The *proportionality of the measure in relation to the public purpose* must be taken into account. If the negative effects of a measure outweigh the public interests, the measure must be considered as disproportionate.

Proportionality of Measure in Relation to Public Purpose

- Private interests in the protection of the fundamental right concerned



- Public interests in restricting the fundamental right concerned
- Protection of fundamental rights of third persons

Fundamental Rights – Restriction

In the „Identification Measures“-Case, is the restriction proportionate (Art. 36 para. 3 Cst)?

Essence of Fundamental Rights (Art. 36 para. 4 Cst)

Restrictions must respect the essence of fundamental rights. Art. 36 para. 4 Cst guarantees the absolute protection of the core content of each fundamental right.

→ If a restriction disregards the essence of a fundamental right, the restriction is *per se* a violation of the Constitution.

Fundamental Rights – Restriction

In the „Identification Measures“-Case, is the essence of the fundamental right respected (Art. 36 para. 4 Cst)?

Course

There will be a guest lecture on 18 March 2026, 04.00-07.00 pm:

Government by Consent: The Swiss Political System in Comparative Perspective

Dr. Martin Kayser, LL.M (UCL), Author, Judge (retired) and Lecturer at the University of St. Gallen and Zurich University of Applied Sciences

Prof. Yossi Nehushtan, Professor of Law and Philosophy, Keele University, UK

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